

HOUSE No. 3627

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Blais

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to enhance agricultural operations.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>1/16/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/12/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>3/19/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>3/19/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>4/10/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>4/16/2025</i>

HOUSE No. 3627

By Representative Blais of Deerfield, a petition (accompanied by bill, House, No. 3627) of Natalie M. Blais for legislation to allow farmers to operate all-terrain vehicles for short distances on public ways. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3269 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to enhance agricultural operations.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 9 of chapter 90 of the General Laws, as appearing in the 2022 Official Edition, is
2 hereby amended by striking the third sentence and inserting in place thereof the following:-

3 A tractor, trailer, truck or all-terrain vehicle may be operated without such registration
4 upon any way for a distance not exceeding one-half mile, if said tractor, trailer, truck or all-
5 terrain vehicle is used exclusively for agricultural purposes consistent with section 1A of the
6 General Laws chapter 128, or between one-half mile and 10 miles if said tractor, trailer, truck or
7 all-terrain vehicle is used exclusively for such agricultural purposes and the owner thereof
8 maintains in full force a policy of liability insurance which conforms to the provisions of section
9 113A of the General Laws chapter 175, or for a distance not exceeding three hundred yards, if
10 such tractor, trailer or truck is used for industrial purposes other than agricultural purposes, for

the purpose of going from property owned or occupied by the owner of such tractor, trailer or truck to other property so owned or occupied.

For the purposes of this section, an all-terrain vehicle shall include those vehicles known as a quad, quad bike, three-wheeler, four-wheeler, or quadricycle as defined by the American National Standards Institute. Persons utilizing all-terrain vehicles under these provisions shall annually notify the police department in the municipalities in which they are to operate of the public way and sections of public way on which they operate in the course of agricultural purposes. Failure to provide such notification may result in penalties pursuant to the General Laws chapter 90, section 20.

All-terrain vehicles operating under the provisions of this section shall be equipped with a safety flag of not less than 36 square inches in area which shall be elevated to no less than 6 feet from the ground. All-terrain vehicles must be equipped with a flashing red light mounted to the rear of the vehicle. If designed to travel at 25 miles per hour or less, the vehicle shall display a “slow moving vehicle emblem” as governed by the General Laws chapter 90, section 7.

Vehicles traveling on a public way subject to this section, shall be operated by a licensed driver. No all-terrain vehicle may operate on a public way between sunset and sunrise. No all-terrain vehicle may be operated on a public way for recreational or other purposes except as authorized in this section and the General Laws chapter 90B, section 25, regarding crossing road at designated points.